

Your Mississippi Non-Conviction Expungement Packet

What this packet is

This is a five-part self-help packet for the Mississippi non-conviction pathway in Miss. Code Ann. Section 99-19-71(4). It is prepared from the facts you verified against your records.

Packet contents

1. Your Mississippi Non-Conviction Expungement Packet
2. Petition for Expungement under Miss. Code Ann. Section 99-19-71(4)
3. Proposed Order of Expungement
4. Certificate of Service and Attachment Checklist
5. Filing Instructions, Next Steps, and When to Get Legal Help

Records to have beside you

- Compare the court, filing location, cause number, and your legal name against the certified disposition and docket sheet.
- Copy the charge, dates, agency, agency identifier, and exact disposition category from the records rather than memory.
- Confirm the prosecuting office, current service address, timing, and any approval-as-to-form practice with the court of origin.
- Ask the court of origin about the filing method, fee or waiver, and number of copies.
- Leave signature and service-time fields blank until you perform those acts, and leave prosecutor and court fields for those officials.
- Stop and get legal help if the disposition, venue, related pending matter, prosecutor treatment, or immigration effect is unclear.

Important limits

LegalEase does not file this packet and does not guarantee relief. Before filing, confirm the filing method, local form preference, fee or waiver treatment, copy count, and service practice with the records office of the court that handled the case. Stop and get legal help when a record is ambiguous or a stopping condition in the instructions applies.

Petition for Expungement under Miss. Code Ann. Section 99-19-71(4)

Court caption

COURT TYPE

Circuit Court

COURT NAME

Circuit Court of the First Judicial District of Hinds County, State of Mississippi

FILING LOCATION

First Judicial District of Hinds County, Jackson, Mississippi

CASE NUMBER

25-CR-2024-000123456789-ABCDEFGHIJKLMN

DEFENDANT

Alexandria Montgomery Sample-Participant

Participant information

DATE OF BIRTH

1985-12-31

MAILING ADDRESS

Apartment 1207, 9876 Reverend Doctor Martin Luther King Junior Memorial Boulevard, Jackson, Mississippi 39201

PHONE NUMBER

601-555-0199

EMAIL ADDRESS

alexandria.montgomery.sample-participant@example.test

Case style

STATE OF MISSISSIPPI v. Alexandria Montgomery Sample-Participant, PETITIONER

Verified record facts

- The court record states the charge as A deliberately long synthetic charge description copied exactly from the participant's test docket, including Mississippi Code section 00-00-00 and gives the alleged offense date as 2023-11-30.
- The arrest or citation date was 2023-12-01. The arresting or citing agency was Jackson Police Department, Records and Identification Division, and the agency case or citation number is JPD-RECORDS-2023-1234567890-ABCDEFGHIJKLMNOPQRSTUVWXYZ.
- The case ended on 2024-08-19 in this one category shown by the certified record: Arrested and released; case dismissed.
- Indictment record: No indictment was returned according to the synthetic certified docket used for this boundary fixture

Statutory basis and statement of truth

Miss. Code Ann. Section 99-19-71(4) provides that, upon petition, a justice, county, circuit, or municipal court

shall expunge the record of a case when an arrest was made and the person was released and the case dismissed, the charges were dropped, there was no disposition, or the person was found not guilty at trial. The petitioner states that the facts in this petition are true and correct to the best of the petitioner's knowledge.

Relief requested

The petitioner asks the Court to expunge the record of this case under Miss. Code Ann. Section 99-19-71(4) and to direct the appropriate recordkeeping agencies as stated in the proposed order.

Participant signature

Signature

Date

PRINTED NAME

Alexandria Montgomery Sample-Participant

No notarization is required for this filing.

Proposed Order of Expungement

Court caption

COURT TYPE
Circuit Court

COURT NAME
Circuit Court of the First Judicial District of Hinds County, State of Mississippi

FILING LOCATION
First Judicial District of Hinds County, Jackson, Mississippi

CASE NUMBER
25-CR-2024-000123456789-ABCDEFGHIJKLMN

DEFENDANT
Alexandria Montgomery Sample-Participant

Case style

STATE OF MISSISSIPPI v. Alexandria Montgomery Sample-Participant, PETITIONER

Proposed findings and direction

1. The record presented to the Court identifies the case-ending category as: Arrested and released; case dismissed.
2. The record identifies these custodians for the proposed direction: the Court, the appropriate sheriff's department, Jackson Police Department, Records and Identification Division, and these other recordkeeping agencies supplied from the record: Hinds County Sheriff's Office; Mississippi Department of Public Safety; Mississippi Criminal Information Center; and every additional synthetic agency named on the test record.

Proposed expungement direction

IT IS ORDERED that all official records and recordations relating to Case No. 25-CR-2024-000123456789-ABCDEFGHIJKLMN are expunged by every person and agency keeping them, including this Court, the appropriate sheriff's department, Jackson Police Department, Records and Identification Division, and Hinds County Sheriff's Office; Mississippi Department of Public Safety; Mississippi Criminal Information Center; and every additional synthetic agency named on the test record, except that fingerprint records are not expunged.

Proposed legal effect

IT IS FURTHER ORDERED that fingerprint records are excepted from the requested expungement; that the petitioner is restored to the status occupied before the arrest, indictment, or information; and that the petitioner need not disclose the arrest, indictment, information, or trial in response to any inquiry except as otherwise provided by law, and is not guilty of perjury or false statement for failing to recite it.

Approval as to form

Reserved for the prosecuting authority where local practice uses this block. APPROVED AS TO FORM:

_____ DATE: _____

Court findings, entry, and signature

PROPOSED FINDINGS (COURT):

_____ DATE OF ENTRY:

Judge

Date

Left blank for the court. Do not complete this block yourself.

Certificate of Service and Attachment Checklist

Court caption

COURT TYPE

Circuit Court

COURT NAME

Circuit Court of the First Judicial District of Hinds County, State of Mississippi

FILING LOCATION

First Judicial District of Hinds County, Jackson, Mississippi

CASE NUMBER

25-CR-2024-000123456789-ABCDEFGHIJKLMN

DEFENDANT

Alexandria Montgomery Sample-Participant

Case style

STATE OF MISSISSIPPI v. Alexandria Montgomery Sample-Participant, PETITIONER

Confirmed service recipient

1. Prosecuting authority: Office of the District Attorney for the Seventh Circuit Court District of Mississippi.
Confirmed service address: Post Office Box 22747, Jackson, Mississippi 39225-2747.

Complete when service occurs

I certify that a true and correct copy of the Petition for Expungement and the proposed Order of Expungement was delivered to Office of the District Attorney for the Seventh Circuit Court District of Mississippi at Post Office Box 22747, Jackson, Mississippi 39225-2747 by United States mail or hand delivery. Service method: _____ Service date: _____ These lines and the signature stay blank until the copy is actually delivered.

Participant certificate signature

Signature

Date

PRINTED NAME

Alexandria Montgomery Sample-Participant

No notarization is required for this filing.

Attachments to collect and check

- Certified disposition or case-ending order - It confirms the cause number, disposition date, and the exact way the case ended. Get it from: Records office of the court that handled the case.
- Docket sheet - It confirms the caption, charge, case history, and whether an ambiguous entry requires legal help. Get it from: Records office of the court that handled the case.
- Indictment - It confirms indictment details only in a case that was actually indicted. Get it from: Circuit clerk or the records office identified on the docket. Only needed where a grand jury actually returned an

indictment.

- Other record-specific attachment requested by the court - Local practice may require a record not prescribed statewide. Get it from: The office holding that record. Only needed where the records office identifies another local requirement.

INSTRUCTIONS

Filing Instructions, Next Steps, and When to Get Legal Help

Where this packet goes

File in the court that handled the case. Before filing, contact that court's records office to confirm whether the petition uses the existing cause number or a new filing number and whether the court has a preferred local form or filing method.

OFFICE

Records office or clerk for Circuit Court of the First Judicial District of Hinds County, State of Mississippi in First Judicial District of Hinds County, Jackson, Mississippi

Confirm the fee or waiver

No universal fee amount is printed in this packet. Ask the records office of the court that handled the case whether a filing fee applies to this subsection (4) petition.

If a fee applies and you cannot afford it, ask that court which pauper's affidavit or fee-waiver process it accepts. Do not assume a statewide amount or waiver form.

Service and local practice

Deliver a copy to Office of the District Attorney for the Seventh Circuit Court District of Mississippi at the confirmed address Post Office Box 22747, Jackson, Mississippi 39225-2747 when the local court directs. The certificate leaves the method and date blank until service actually occurs. Ask the records office whether advance notice, prosecutor approval as to form, or another local step is required.

Copies and records

Keep a complete copy of everything you file and a certified or conformed copy of any signed order. Ask the records office how many filing, judge, prosecutor, and participant copies the local court wants.

WHAT TO BRING

Signed original plus the number of copies confirmed by the court of origin

Limits after an order

An expungement order does not direct destruction of fingerprint records. The Mississippi Criminal Information Center keeps a nonpublic record for first-offender determinations. An employer may still ask whether an order of expunction was entered. Keep a certified copy of any signed order and answer questions according to the law that applies to the particular question.

What happens next

1. File the signed petition, proposed order, certificate or service materials required by local practice, and the applicable attachments with the court of origin. (after every record fact and local filing step is confirmed)
2. Provide the prosecuting authority the copy required by the court and complete the certificate only when service occurs. (at the time directed by the court's local practice)
3. Watch for a hearing notice, request for another record, objection, or signed order. (after filing; the statute supplies no universal decision deadline)
4. If an order is signed, obtain and keep a certified or conformed copy and ask the court which listed agencies receive it and whether you must deliver copies. (promptly after entry of the order)

5. Follow up with the court and the agencies named in the order if the public record does not change after they have had time to process it. (on the timetable those offices confirm)

Stop and get legal help

- The docket says 'passed to the file,' 'retired to the file,' remanded, or uses another ambiguous case-ending entry. The repository does not establish that this route covers that entry. Stop here and get help before you go further.
- The case moved between courts or the court of origin is unclear. Venue and caption treatment require legal review before filing. Stop here and get help before you go further.
- The case involved nonadjudication, pretrial intervention, diversion, intervention court, or drug court. Those are different Mississippi routes with different legal treatment. Stop here and get help before you go further.
- A related charge or a co-defendant matter remains pending. Filing may affect or disclose an open matter. Stop here and get help before you go further.
- The prosecuting authority refuses to approve the proposed order as to form where the local court expects that approval. Do not sign for the prosecutor or file as though approval was given. Stop here and get help before you go further.
- You are not a United States citizen or have any immigration concern. Record clearing can interact with immigration law and requires qualified immigration advice. Stop here and get help before you go further.

Before you file

- Compare the court, filing location, cause number, and your legal name against the certified disposition and docket sheet.
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ABOUT THIS PACKET

Mississippi Non-Conviction Expungement Packet under Miss. Code Ann. Section 99-19-71(4)

ROUTE

MS:non-conviction-expungement-for-dismissal-no-disposition-or-acquittal

PACKET SPECIFICATION

ms-nonconviction-expungement-99-19-71-4 v1.0.0

PREPARED FROM VERIFICATION

d7778fc6857e27b09f1d5a38476c809e7388709aa8305e96d53c22222222222

This packet was prepared from the answers you confirmed at final verification. If any of those answers change, the packet has to be prepared again - a filing built on a superseded answer is worse than no filing.